

**B44AA**

Para. 165AA(2)

**Sexual Offences Case Conference Checklist**

**Case Number:**

**Case Name:**

**PART ONE: GENERAL**

| S/N | Items                                     | Status<br>(*delete where inapplicable)                                                                                                                                                                       |
|-----|-------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | <b>Charge(s)</b>                          |                                                                                                                                                                                                              |
|     | <b>Proceeded Charge(s)</b>                | Total number of proceeded charge(s):                                                                                                                                                                         |
|     |                                           | Brief description of each proceeded charge:                                                                                                                                                                  |
|     | <b>Stood Down Charge(s)</b>               | Total number of stood-down charge(s):                                                                                                                                                                        |
| 2   | <b>Agreed Facts</b>                       |                                                                                                                                                                                                              |
|     | <b>Statement of Agreed Facts ("SOAF")</b> | Will a SOAF be used?<br><input type="checkbox"/> Yes<br><i>Please state when the SOAF will be signed and filed:</i><br><br><input type="checkbox"/> No<br><i>Please explain why a SOAF will not be used:</i> |

|                                                                                                                                                          |                                                                 |                                                                                                                                                                                               |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
|                                                                                                                                                          |                                                                 | <input type="checkbox"/> Parties are still discussing the issue:<br><i>Please indicate whether a draft SOAF is ready and when parties will be able to confirm whether a SOAF will be used</i> |  |
| 3                                                                                                                                                        | <b>Witnesses</b><br><b>(parties to complete <u>Annex A</u>)</b> |                                                                                                                                                                                               |  |
|                                                                                                                                                          | <b>Prosecution Witnesses</b>                                    | Number of Prosecution witnesses:                                                                                                                                                              |  |
|                                                                                                                                                          |                                                                 | Number of Prosecution witnesses whose evidence is undisputed and can be admitted by conditioned statements (i.e. witness' attendance can be dispensed with):                                  |  |
|                                                                                                                                                          |                                                                 | Number of Prosecution witnesses who will be required to give evidence at trial:                                                                                                               |  |
|                                                                                                                                                          |                                                                 | Likely length of Prosecution's case:                      days                                                                                                                                |  |
|                                                                                                                                                          | <b>Defence Witnesses</b>                                        | Number of Defence witnesses:                                                                                                                                                                  |  |
| Number of Defence witnesses whose evidence is undisputed and can be admitted by conditioned statements (i.e. witness' attendance can be dispensed with): |                                                                 |                                                                                                                                                                                               |  |
| Number of Defence witnesses who will be required to give evidence at trial:                                                                              |                                                                 |                                                                                                                                                                                               |  |
| Likely length of Defence's case:                      days                                                                                               |                                                                 |                                                                                                                                                                                               |  |
| 4                                                                                                                                                        | <b>Expert Witnesses</b>                                         |                                                                                                                                                                                               |  |
|                                                                                                                                                          | <b>Prosecution Expert Witnesses</b>                             | Number of Prosecution experts:                                                                                                                                                                |  |

|   |                                     |                                                                                                                                                                                                                                         |
|---|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                     | Areas on which each Prosecution expert will give evidence:                                                                                                                                                                              |
|   |                                     | Will an expert report(s) be used: Y/N*                                                                                                                                                                                                  |
|   |                                     | <p>If yes, has a copy of the expert report been served on the Defence: Y/N*</p> <p>If a copy of the expert report has not been served on the Defence, when will this be done:</p>                                                       |
|   | <b>Defence<br/>Expert Witnesses</b> | Number of Defence experts:                                                                                                                                                                                                              |
|   |                                     | Areas on which each Defence expert will give evidence:                                                                                                                                                                                  |
|   |                                     | <p>Will an expert report(s) be used: Y/N*</p> <p>If yes, has a copy of the expert report been served on the Prosecution: Y/N*</p> <p>If a copy of the expert report has not been served on the Prosecution, when will this be done:</p> |
| 5 | <b>Ancillary Hearings</b>           |                                                                                                                                                                                                                                         |

|  |                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--|--------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <p><b>Written Statements</b></p>                 | <p>Does the Prosecution intend to admit statements of the accused person(s) as part of its case: Y/N*</p> <p>If yes, which statements does the Prosecution intend to admit as part of its case:</p> <p>Statements which the Defence is objecting to the admission of:</p> <p>Nature of challenge to admissibility (the Defence is to briefly explain the grounds on which the admissibility of the statement is being challenged – for example, whether it is a threat, inducement, promise or oppression that is alleged):</p> <p>Estimated number of days required for the ancillary hearing:</p> <p>Statements which the Defence is challenging on the basis of accuracy:</p> |
|  | <p><b>Video Recorded Interviews (“VRIs”)</b></p> | <p>Does the Prosecution intend to admit VRIs of the accused person(s) as part of its case: Y/N*</p> <p>If yes, which VRIs of the accused person(s) does the Prosecution intend to admit as part of its case:</p> <p>Which portions of the VRI(s) will be played in Court:</p> <p>How much time is required to play the VRI(s):</p>                                                                                                                                                                                                                                                                                                                                               |

|  |                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|--|---------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  |                                                               | <p>Transcripts of the VRI(s) have been prepared?: Y/N*</p> <p>Accuracy of the transcripts of the VRI(s) have been agreed to by parties: Y/N*</p> <p>If the accuracy of the transcripts of the VRI(s) have not been agreed to by parties, the portions of the transcripts that are being challenged on the basis of accuracy:</p> <p>VRIs which the Defence is objecting to the admission of:</p> <p>Nature of challenge to admissibility - (the Defence is to briefly explain the grounds on which the admissibility of the statement is being challenged – for example, whether it is a threat, inducement, promise or oppression that is alleged):</p> <p>Estimated number of days required for the ancillary hearing:</p> |
|  | <p><b>Hearsay Evidence under s 32 of the Evidence Act</b></p> | <p>Does the Prosecution/Defence* intend to admit hearsay evidence? Y/N*</p> <p>If yes, have the requirements under regulation 2 of the CPC (Notice Requirements to Admit Hearsay Evidence) Regulations 2012 been complied with: Y/N*</p> <p>If the notice requirements have not been complied with, please explain why:</p> <p>Is the opposing party objecting to the admissibility of the hearsay evidence and is there a need for an ancillary hearing to determine the admissibility of hearsay evidence under s 32 of the Evidence Act: Y/N*</p>                                                                                                                                                                         |

|   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   | <p><b>Other evidence</b></p> <p>Does the Prosecution/Defence intend to object to the admissibility of any other evidence at the trial: Y/N*</p> <p>If yes, please identify each piece of evidence, the admissibility of which is being challenged:</p> <p>Nature of challenge to admissibility (the objecting party is to briefly explain the grounds on which the admissibility of the evidence is being challenged):</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 6 | <p align="center"><b>Applications to Court</b></p> <p><b>Intended Applications by Parties</b></p> <p><input type="checkbox"/> Shielding measures under s 281A of the Criminal Procedure Code 2010 (“<b>CPC</b>”)</p> <p><input type="checkbox"/> Redaction and/or non-identification orders under ss 8(2A) and (3) of the Supreme Court of Judicature Act 1969 (“<b>SCJA</b>”) / ss 7(2A) and (3) of the State Courts Act 1970 (“<b>SCA</b>”) or variation of such orders previously made</p> <p><input type="checkbox"/> In private proceedings under s 281B of the CPC or s 8(2) of the SCJA /s 7(2) of the SCA</p> <p><input type="checkbox"/> Joint trial of charges or accused persons under ss 143 to 145 of the CPC</p> <p><input type="checkbox"/> Permission to ask complainant questions and/or adduce evidence about the:</p> <ul style="list-style-type: none"> <li><input type="checkbox"/> complainant’s physical appearance</li> <li><input type="checkbox"/> complainant’s sexual behaviour with persons</li> </ul> <p>under regulation 3 of the Evidence (Restrictions on Questions and Evidence in Criminal Proceedings) Rules 2018</p> |

|   |                                                                                                                         |                                                                                                                                                                                                                                                                                                 |
|---|-------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                                                                                         | <p>When will each of the above applications be made, and by whom:</p> <p>Which of the above applications, if any, will be contested and by whom:</p> <p>For each application that will be contested, the party opposing the application is to state the nature/premise of the challenge(s):</p> |
| 7 | <p align="center"><b>Miscellaneous</b></p>                                                                              |                                                                                                                                                                                                                                                                                                 |
|   | <p align="center"><b>Technology Facilities and Administrative Support</b></p>                                           | <p>Do parties require Technology Facilities for the hearing: Y/N*</p> <p>If yes, please specify the Technology Facilities required:</p>                                                                                                                                                         |
|   |                                                                                                                         | <p>Do parties require other administrative support for the hearing: Y/N*</p> <p>If yes, please specify the administrative support required:</p>                                                                                                                                                 |
| 8 | <p align="center"><b>Scheduling &amp; Management of Witnesses at Trial<br/>(parties to complete <u>Annex B</u>)</b></p> |                                                                                                                                                                                                                                                                                                 |
|   | <p align="center"><b>Consolidated Witness Schedule</b></p>                                                              | <p>Unless otherwise directed by the Court, two weeks prior to trial, parties are to tender a consolidated witness schedule in the form set out in Annex B.</p>                                                                                                                                  |

## **PART TWO: LIST OF ISSUES**

*[Prior to the case conference, and where the accused is represented by counsel, parties are to confer on the factual and legal issues that are likely to arise at trial. Parties should be concise and identify the key issues, rather than setting out detailed sub-issues. Where the accused is self-represented, sections I to III below need not be completed. Instead, each party should set out a list of the issues which they say will arise in the trial.]*

### **I. Elements of the Charge that are not in Dispute**

- 1.
- 2.

### **II. Agreed List of Issues in Dispute**

#### **Factual Issues**

- 1.
- 2.

#### **Legal Issues**

- 1.
- 2.

### **III. Non-Agreed List of Issues in Dispute**

#### **Additional Issues According to the Prosecution**

- 1.
- 2.

#### **Additional Issues According to the Defence**

- 1.
- 2.



**Annex A: List of Witnesses**

| Prosecution's List of Witnesses |      |      |                                         |                                         |                                                 |
|---------------------------------|------|------|-----------------------------------------|-----------------------------------------|-------------------------------------------------|
| S/N                             | Name | Role | Estimated Duration of Evidence-in-Chief | Estimated Duration of Cross-Examination | Interpretation / Communication / Support Needs* |
| 1.                              |      |      |                                         |                                         |                                                 |
| 2.                              |      |      |                                         |                                         |                                                 |
| 3.                              |      |      |                                         |                                         |                                                 |

| Defence's List of Witnesses |      |      |                                         |                                         |                                                 |
|-----------------------------|------|------|-----------------------------------------|-----------------------------------------|-------------------------------------------------|
| S/N                         | Name | Role | Estimated Duration of Evidence-in-Chief | Estimated Duration of Cross-Examination | Interpretation / Communication / Support Needs* |
| 1.                          |      |      |                                         |                                         |                                                 |
| 2.                          |      |      |                                         |                                         |                                                 |
| 3.                          |      |      |                                         |                                         |                                                 |

**\* Communication needs include: whether the witness requires visual aids or breaks while testifying etc. Support needs include the Witness Support Programme.**

### **Annex B: Consolidated Witness Schedule**

*\* Parties are to list the witnesses in order of appearance & indicate how long each witness' evidence is expected to take*

| <b>S/N</b>                   | <b>Name</b> | <b>Role</b> | <b>Use of<br/>Conditioned<br/>Statement<br/>(Y/N)</b> | <b>Interpretation /<br/>Communication /<br/>Support Needs*</b> | <b>Date on which<br/>witness is<br/>likely to give<br/>evidence</b> | <b>Estimated<br/>Duration of<br/>Evidence-in-Chief</b> | <b>Estimated Duration<br/>of Cross-<br/>Examination</b> |
|------------------------------|-------------|-------------|-------------------------------------------------------|----------------------------------------------------------------|---------------------------------------------------------------------|--------------------------------------------------------|---------------------------------------------------------|
| <b>Prosecution Witnesses</b> |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 1.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 2.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 3.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| <b>Defence Witnesses</b>     |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 1.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 2.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |
| 3.                           |             |             |                                                       |                                                                |                                                                     |                                                        |                                                         |

**\* Communication needs include: whether the witness requires visual aids or breaks while testifying etc. Support needs include the Witness Support Programme.**